

File No.: EXP202207868

RESOLUTION No.: R/00128/2023

Considering the complaint filed on June 6, 2022, with this Agency by Ms. A.A.A. (hereinafter, the complainant) against CULMIN INNOVATION AND SOLUTIONS, S.L. (hereinafter, the respondent) for not having properly addressed her right to erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the following FACTS have been established:

FIRST: The complainant contacted the person responsible for the website youevent.es, where results of amateur races are published, in which she participated, as she did not want her data to be published, and thus, she states, requested the erasure of her personal data.

The complaint is presented regarding the manner in which her data was processed to address her request. Instead of erasing her personal data, the responsible party replaced the name and surname of the affected party with another fictitious name and surname that are offensive and are linked to the bib number, time, and position obtained by the respondent in the races and her place of origin.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated any, the complaint was forwarded to the entity being complained against for analysis and to respond to the complainant and this Agency within one month.

Culmin Innovation and Solutions SL, the entity that owns the web platform for sports registrations and the provision of services related to the management and organization of sports events (youevent.es), stated, in summary, that, upon receiving the complainant's request, on the same day "(...) YouEvent proceeded on October 25, 2022, at 18:25, to delete from our database the registration records for the sports events in which this person had registered."

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It indicates that, on October 28, 2022, the complainant sent a new email providing a Google screenshot referencing a URL of some published results of a competition. "(...) At 17:23 on the same day, YouEvent informed that the anonymization of her data was proceeding." "After anonymizing her data in the various PDF result tables, the user insists that her name still appears in Google searches, as can be seen in the email thread collected in the attached document (PDF).

YouEvent requested the user to indicate the exact URL where her data appears, in order to have a clear understanding on the part of YouEvent that the server hosting that PDF results document belongs to YouEvent, or conversely, that said URL may belong to another server that does not belong to YouEvent.

This request apparently generated the user's discomfort as she responded with the following (as can be read in the email thread):

"I do not have to indicate any URL to you, I request, according to current legislation, the REMOVAL of my data from the systems of youevent, and therefore, from all the URLs of youevent."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding that the complainant's claims were satisfied. Consequently, on September 6, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the entity being complained against a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate. This entity indicated, in summary, that "The data that were initially used for the anonymization of the complainant's personal data have been changed in the affected classification records (links attached below) to new data, in such a way that, on the one hand, they cannot be offensive to the complainant in any way, and on the other hand, they can guarantee the total privacy of the complainant in that her person cannot be identified in the aforementioned classification records."

FOURTH: The allegations presented by the entity being complained against were forwarded to the complainant, so that, within fifteen working days, she could formulate any allegations she deemed appropriate, without any written submission being recorded.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of

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natural persons regarding the processing of personal data and the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring them to respond to this Agency within one month and to demonstrate that they have provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that

with the present procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, according to what is established in Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing under Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing under Article 21(2);
- d) personal data have been unlawfully processed;
- e) personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the data controller;
- f) personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replicas thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation that requires processing under Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impede the achievement of the objectives of that processing; or
- e) for the establishment, exercise, or defense of legal claims.

FIFTH: In the case analyzed here, from the examination of the documentation provided by the parties, it has been established that the claimant requested the erasure of their personal data from the lists of participants in several races, and that the respondent proceeded to change the name and surname to other fictitious ones that were offensive.

During the processing of this procedure, the respondent has stated that they have proceeded to anonymize the claimant's data with others that are not offensive.

Regarding anonymization, it should be noted that data will be considered anonymized to the extent that there is no reasonable likelihood of identifying the individual within the dataset, which must be considered by the party.

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The respondent is required to respond to the exercise of the right to erasure requested by the claimant, taking into account the data processed by the respondent in the specific case. This is because anonymization, insofar as it may be considered erasure in the terms of Article 17 of the GDPR, does not simply consist of removing the name and surname of the data subject if the identity of the claimant can be inferred from the other personal data that may be processed by the data controller, in this case, the respondent.

Notwithstanding the above, the respondent has not provided any evidence that allows for the consideration that it has expressly responded to the claimant informing them of the erasure carried out, as established by data protection regulations.

Consequently, the present claim of rights should be upheld.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. and to instruct CULMIN INNOVACION Y SOLUCIONES, S.L. with NIF B85925329, to send the claimant a certification within ten working days following the notification of this resolution, stating that it has addressed the requested right to erasure, or to deny it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to CULMIN INNOVACION Y SOLUCIONES, S.L. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1195-291122

Mar España Martí

Director of the Spanish Agency for Data Protection

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